

File No.: EXP202212827

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 14, 2022. The complaint is directed against Ms. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The respondent is ***PROFESSION.1. On ***DATE.1, the respondent created a WhatsApp group named "****GROUP.1", including 255 participants (among whom is the complainant).

The complainant states that the respondent has her data (...). Furthermore, she indicates that she was added to the group without prior consent, improperly revealing her name and phone number to all participants.

Along with the complaint, she provides a document that includes the phone number that created the group and all the numbers of the people added to it.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on December 12, 2022, as stated in the certificate in the file.

A new sending of the document forwarding the complaint was made by certified postal mail, which was returned as "unknown".

THIRD: On January 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FOURTH: On May 31, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which she stated that on ***DATE.1, (...) she created an open WhatsApp group among her contacts, which did not include the complainant, named "****GROUP.1"; (...).

Additionally, in this written statement, she also refers to the fact that the respondent (...). The complainant sent her a burofax dated March 4, 2021, to comply with her economic claims, as otherwise she would initiate an ordinary procedure for claiming amounts, considering that she had incurred in (...); a procedure that is currently underway.

SIXTH: On July 31, 2023, a resolution proposal was made, proposing to sanction B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €2,000 (TWO THOUSAND EUROS).

SEVENTH: The resolution proposal was notified in accordance with the rules established in Law

39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which she requested that these allegations be admitted and that the file be concluded and archived without the imposition of any measures or sanctions.

In this written statement, in addition to reproducing what was already stated in the written statement regarding the initiation agreement, the respondent insists on (...).

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is evidenced in the file that a WhatsApp group named "****GROUP.1" was created, including 255 participants.

SECOND: The prior consent of the participants to be added to this WhatsApp group is not evidenced in the file.

THIRD: It is evidenced in the file that this WhatsApp group allowed the number of all participants to be revealed.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since the respondent carries out, among other processes, the collection, storage, and use of the following personal data of its clients, given its professional activity, such as: name and surname, phone number, email address... among others.

The respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is evidence of the creation of a WhatsApp group named "****GRUPO.1", including 255 participants (among them the complainant), without obtaining the necessary prior consent and improperly revealing the phone number to all participants.

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, it is established that the personal data of the complainant was improperly exposed by the respondent; as it created a WhatsApp group named "****GRUPO.1", including 255 participants (among them the complainant), improperly revealing the phone number of all participants.

However, it must be taken into account the principle of culpability required in the sanctioning procedure. Thus, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, establishes that "Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, groups of affected parties, unions and entities without legal personality, and independent or autonomous assets, that are responsible for the same by way of intent or negligence, may be sanctioned for acts constituting an administrative infraction."

In this case, the documents presented by the respondent (...) exempt from all culpability or intent and, consequently, from all responsibility for the commission of the infraction.

In this regard, it should be noted that culpability is the reproach made to a person for having been able to act differently than they actually did. In other words, culpability is an expression of not acting in accordance with the law (STS February 5, 1999).

The assessment of culpability in the conduct of the infringing party is a requirement that arises directly from the constitutional principles of legal certainty and legality concerning the exercise of sanctioning powers of any nature.

The principle of culpability constitutes a basic element when qualifying a person's conduct as sanctionable, that is, it is an essential element in any administrative offense, and it is a principle that operates not only when analyzing the conduct determining the infraction but also regarding aggravating circumstances (STJM of June 28, 2023).

Therefore, as jurisprudence has stated, if there is a cause that excludes the culpability or responsibility of the respondent, the imposition of a sanction is not appropriate, even if the infringing act has occurred, as our Courts have stated, among others, in the Judgment of the Court of Appeal of 21/06/2023.

In this case, (...), there is no doubt that we are in a situation that excludes culpability, since the (...) implies that the respondent was not in a position to fulfill its obligations.

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Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article

46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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